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California Becomes First State to Ban Four Harmful Chemicals in Food

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Gov. Gavin Newsom signed the California Food Safety Act, the first law in the U.S. to ban four harmful chemicals from candy, cereal, soda, and other processed food sold and produced in the state.

Assemblymember Jesse Gabriel (D-Woodland Hills) authored the law, which ends the food uses of brominated vegetable oil, potassium bromate, propylparaben and Red Dye No. 3.

These chemicals are linked to human health issues, including hyperactivity, nervous system damage, and an increased cancer risk.

All four additives are already banned by European regulators, with the narrow exception of Red Dye No. 3 in candied cherries.

"The Governor's signature today represents a huge step in our effort to protect children and families in California from dangerous and toxic chemicals in our food supply," said Gabriel, chair of the state Assembly Committee on Privacy and Consumer Protection.

"It's unacceptable that the U.S. is so far behind the rest of the world regarding food safety, he said. "This bill will not ban any foods or products — it will require food companies to make minor modifications to their recipes and switch to safer alternative ingredients that they already use in Europe and so many other places around the globe."

Two national non-governmental organizations, the Environmental Working Group and Consumer Reports, backed the California bill.

"This is a milestone in food safety, and California is once again leading the nation," said Ken Cook, EWG president. "We applaud Gov. Newsom for signing this landmark bill and putting the health of Californians before the interests of industry.

"California is creating a healthier market for consumers," he said.

This groundbreaking law may affect food across the country, not just in California, so all Americans will likely benefit from the ban. Given the size of the state's economy, it is unlikely manufacturers will produce two versions of their product — one to be sold in California and one for the rest of the country.

As many as 12,000 products may be affected, based on EWG's Food Scores database.

Other states have started to follow California's lead. A similar bill, which would ban the same four chemicals plus titanium dioxide, is making its way through the New York legislature committee.

Most chemicals added to food and food packaging to enhance flavor or appearance, or to preserve freshness, are likely safe to eat.

However, the four food chemicals covered by the California Food Safety Act have been linked to several serious health concerns. The European Union banned them after it launched a full review of the safety of all food additives in 2008.

Risk to children

Children have lower tolerance levels than adults to chemical exposure, and their developing bodies make them especially vulnerable to harmful chemicals in their food.

More than 10,000 chemicals are allowed for use in food sold in the U.S. Nearly 99 percent of those introduced since 2000 were approved by the food and chemical industry, not the Food and Drug Administration, the agency tasked with ensuring our food supply is safe.

The chemicals banned by the California Food Safety Act haven't been reviewed by the FDA for 30 to 50 years, if ever.

"We've known for years that the toxic chemicals banned under California's landmark new law pose serious risks to our health," said Brian Ronholm, food policy director at Consumer Reports.

"California has taken an important stand for food safety when the FDA failed to take action. Safer versions of food products available in other countries should be made available to U.S. consumers too," he said.

"By keeping these dangerous chemicals out of food sold in the state, this groundbreaking law will protect Californians and encourage manufacturers to make food safer for everyone," said Ronholm.

Pending petitions

Consumers consistently rank food chemical concerns ahead of other food safety issues. However, the FDA does not adequately regulate additives, mainly due to Congress's lack of financial support for agency food chemical reviews.

But there's an opportunity for the FDA to step in the right direction.

EWG has signed on to two petitions being considered by the FDA that would revoke approval of titanium dioxide and Red Dye No. 3 in food.

"These petitions offer the FDA a chance to step up to the plate and do its job to protect Americans from toxic food chemicals," said Scott Faber, EWG senior vice president for government affairs.

"We urge the FDA to take action on these petitions and protect the health of all consumers across the country, " he continued.

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